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Articulating the Concerns of Ethnic Minorities in Relation to Constitutional Proposals

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on 05/21/2010



It may be useful to begin by going back over 80 years to the time when , in the mid – nineteen twenties, S.W.R.D. Bandaranaike, newly returned from Oxford University, vigorously promoted Federalism in Public lectures as well as in a series of newspaper articles. Curiously, the reported responses to his lecture in July 1926 in Jaffna on Federalism were not very positive. That lecture was on the invitation of the Jaffna Students Congress, later re-constituted as the Jaffna Youth Congress. It was the Kandyans who backed Federalism at that time. If the Tamils too had backed Federalism then, we would surely have had a Federal Constitution in 1946. Those interested in the subject may consult the monumental publication of C.P.A. titled *Power Sharing in Sri Lanka: Constitutional and Political Documents, 1926 – 2008*, edited by Rohan Edrisinha, Mario Gomez, V.T.Thamilmaran and Asanga Welikala (2008).

The Donoughmore Commission, which was far in advance of the local political leaders as well as the Colonial Administration, introduced Universal Adult Franchise and territorial electorates in 1931. Except for the Jaffna Youth Congress, Labour Leader A.E.Goonesinha and other political light weights, Universal Adult Franchise was not favoured. Such opposition was ineffective. It should have been clear to everyone that both reforms were inevitable and that it was only a question of when. Leaders who champion lost causes do harm to their reputations; minority leaders who do so also harm the communities they claim to represent.

I would place the 50-50 proposal of the Tamil Congress in the mid – 1940s and the Vaddukoddai Resolution of 1976 in favour of secession in this category of lost causes. These were patently unrealizable and doomed to fail from the outset. It should have been clear even then that those proposals would bring harm to the Tamil people. The series of pogroms from 1977 through to the civil war that raged from 1985 till 2009Â could be attributed at least in part to the Vaddukoddai Resolution. In the case of Federalism, pushing it as a Tamil project made it a lost cause. Some efforts were made early on, with some success, to secure Muslim support, but none to secure Sinhalese support. Without Sinhalese support the Federal project was doomed. It was possible to secure President Chandrika Bandaranaike's support for Federalism in 1995 and , briefly, Prime Minister Ranil Wickramasinghe's support for Federalism in 2002, but those achievements were not followed up. If Federalism or Quasi Federalism is to be proposed again, it must be preceded by much work with Sinhalese political leaders. No one interested in the welfare of the Tamil people would propose Secession or Confederation – such a proposal would not only fail but might also provoke a violent backlash.

It was noted that Bandaranaike's visit to Jaffna was on the invitation of the Jaffna Students Congress / Jaffna Youth Congress. Over the years that organization invited virtually every political leader of note from outside Jaffna to its sessionsÂ as guest speakers or as Session Presidents. These invitees included Sinhalese, Muslims, Indian Tamils, Eastern Tamils and others. The Youth Congress was not merely building up its own organization but also seeking alliances and networking with leaders across the Island irrespective of ethnicity, religion, caste, region, and political persuasion.

Unfortunately that initiative gradually lost momentum. The Youth Congress took a misguided, unilateral decision to boycott the State Council election of 1931, which was the first based on Universal Adult Franchise, on the grounds that the Donoughmore reforms did not go far enough towards independence. Nearly all the Tamil leaders outside the Youth Congress opposed Universal Adult Franchise, territorial electorates and, in some cases, even Dominion status. This brought harm and suspicion on the Tamils and the suspicion directed towards Tamils even extended to the Youth Congress boycott. In consequence the reputation of the Youth Congress declined progressively. Again, it was the Tamils who suffered.

Unfortunately, productive inter-ethnic cooperation has not been in the Sri Lankan political tradition. On the part of Sri Lankan Tamils they had either indulged in Federal Party led go it alone policies or to nondescript TamilsÂ seekingÂ ministerial portfolios in exchange for unconditional support to the Government. Post – 1948, there had been only a few brief instances of productive cooperation by Sri Lankan Tamil leaders, notably by Neelan Tiruchelvam who helped to draft the 1995 Constitutional proposals. These proposalsÂ were far in advance of any other proposal before or since then, but he was assassinatedÂ by the LTTE, and Tamil MPs failedÂ to back those proposals. In contrast Muslim leaders, among them Badiuddin Mohamed, and the Indian Tamil leader Thondaman Sr. had contributed much to their communities with great acceptance.

The political climate now is less favourable for productive inter- ethnic cooperation than at the times of Neelan Tiruchelvam, Badiuddin Mohamed and Thondaman Sr.Â To be effective now there may need to be a coalition of Sri Lankan Tamil, Muslim and Indian Tamil leaders with the backing of the Tamil Diaspora.Â The Tamil Diaspora has resources and lobbying capacity that could make a critical difference. What is necessary is to ensure that the Diaspora works in support of and to complement the leadership within Sri Lanka.

Some radical reorientation of Diaspora politics is needed.

Happily the Sri Lankan Tamil , Muslim and Indian Tamil people voted together at the Presidential election in January this year despite vigorous attempts to divide the votes. If that level of cooperation had been sustained into the Parliamentary elections in April 2010 the outcome would have been much better than it has been. Even now it is not too late for such unity to be forged afresh.

The political climate is not right just now for Sri Lanka to embark on the formulation of a new Constitution. What seems likely is the passage of one or more Constitutional Amendments. An effective coalition of Sri Lankan Tamil, Muslim and Indian Tamil leaders can help to ensure that any Constitutional Amendment is compatible with the concerns of their communities. If that coalition proves to be durable, it could help to create the conditions under which a new Constitution could be formulated. The 1946 Constitution was formulated by the Colonial administration, the 1972 Constitution by the then SLFP led coalition, and the 1978 coalition by the UNP. The ethnic minorities had little or no say in the drafting of these Constitutions.Â They need to come together and ensure that they have a significant roleÂ and that their concerns are taken into account when any future Constitution is drafted. Such unity is both essential and possible.

Author's address to the Fifth Annual Tamil Studies Conference, University of Toronto, May 13 – 15,2010.



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